

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
JUDGMENT

I.C.A. No.13336/2022

Province of the Punjab **VS.** Chand Iqbal etc.
through its Chief Secretary etc.

Date of hearing	13.05.2025 and 20.05.2025
Appellants by	Rana Shamshad Khan, Additional Advocate General alongwith Tahir Mehmood, Law Officer, PPSC, Ali Niaz, Law Officer, PPSC and Mian Muhammad Iqbal, Director (Legal), PPSC
Respondents by	Mr. Abid Hussain Saqi, Mian Bilal Bashir, Bilal Hasan Minto, Barrister Muhammad Saram Israr, Moeen Yousaf and Syed Hussain Raza, Advocates for respondents in Intra Court Appeals. Hafiz Tariq Nasim, Jawad Tariq Nasim, Usman Shafiq, Advocates for petitioners in W.P.No.29811/2021 Barrister Taha Shaukat and Barrister Salman Khalid, Advocates for petitioners in W.P.No.28399/2021 Mr. Saifullah Maan, Advocate in for petitioners W.P.No.28711/2021 Mr. Sohaib Rumi, Advocate for petitioners in W.P.No.16781/2025

Ch. Muhammad Iqbal, J:- Through this single judgment, we intend to decide the titled Intra Court Appeal [No.13336/2022] as well as the connected appeals/writ petitions mentioned in Appendix annexed with this judgment as common questions of law and facts are involved in these cases.

2. Brief facts of these cases are that the respondents filed Writ Petitions and contended that Punjab Public Service Commission [hereinafter referred as “Commission”] invited applications through press for appointment against vacant posts of Deputy Accountant (BS-16). The respondents applied for the

said post and after test and interview the names of successful candidates including name of respondent were recommended for appointment on the said posts. On recommendation of the Commission, the Chief Inspector of Treasuries and Accounts, Government of the Punjab issued appointment/offer letters to the respondents who accordingly assumed the charge of the post and started performing their official duties. On the secret source of information recorded through Rapt No.4 dated 02.01.2021 the Anti-Corruption Establishment conducted raid on 03.01.2021 and apprehended employees of PPSC involved in leakage of 12 papers and used unfavourable means in the exam and also registered Criminal Case F.I.R No.1/21 under Section 409, 161 & 166 PPC and 5/2/47 ACE and said Agency (ACE) conducted inquiry and finally fixed liability. On the basis of finding / report of the said Investigator, the Commission vide letter No.ESII-1/2019-PPSC/405 dated 07.04.2021 withdrew the result of tests/interviews as well as recommendations for the aforesaid post and in pursuance of the said letter, the Chief Inspector of the Treasuries & Accounts, Government of the Punjab, Finance Department terminated the service of respondents vide orders dated 09.04.2021. Being dejected, the respondents assailed the termination orders dated 09.04.2021 through different Writ Petitions. For ready reference, prayer made in one of the writ petitions [W.P.No.26833/2021] is reproduced as under:

“Under the above, circumstances it is, therefore, most respectfully prayed:-

A. To declare that action of respondents is transgression of authority having no legal effect and termination orders are nullity in the eyes of law and liable to be dismissed.

B. To declare that after issuing of appointment orders followed by joining report and drawl of salary continuously till 31st March 2021 services of the petitioners are governed by Punjab Civil Servants Act 1974 and Punjab Civil Servants (Appointment & Conditions of Service) Rules 1974, therefore,

their services cannot be terminated on the directions of Punjab Public Service Commission.

It is further prayed that the operation of impugned termination order dated 09.04.2021 passed by respondent No.3 may very kindly be suspended and the petitioners may very kindly be allowed to continue their services at their present position/place of posting and respondents No.2 & 3 may very kindly be directed to release monthly salaries of the petitioners without any delay till the final disposal of instant writ petition.”

The said Writ Petition was contested by the appellant through filing report and parawise comments by raising therein the preliminary objection of maintainability and also defended the petition on legal and factual parlances. The learned Single Judge in Chamber allowed the writ petitions of the respondents vide judgment dated 14.07.2021. Against the said judgment, the appellants filed Civil Petitions [No.39-L, 76-L to 83-L of 2022 and 127-L of 2022] titled as Province of the Punjab through its Chief Secretary, Govt. of the Punjab, Lahore etc. Vs. Chand Iqbal etc. before the Hon'ble Supreme Court of Pakistan and the Hon'ble Apex Court vide order dated 03.02.2022, remitted the matter to this Court with the following observation:

“Having heard the learned counsel for the parties, it appears that an intra court appeal in the matter is competent. With the consent of the parties, the matter is remanded to the High Court with a direction to Registrar of the High Court to place the same before the Hon'ble Chief Justice of the said Court for fixation of this matter before an appropriate Division Bench of the said Court by treating this petition as an intra court appeal. The said bench shall hear both sides and decide the same in accordance with law.”

Hence, these appeals. The instant appeal was listed before this Bench on 25.02.2025 and the learned Law Officer obtained adjournment to prepare his case and case was fixed on 26.02.2025 but learned counsel for the respondent was not available and on 05.03.2025 the law Officer was not available due to his indisposition thus finally parties advanced their arguments on 13th & 20th May, 2025.

3. Arguments heard. Record perused.

4. Admittedly, through advertisement in newspaper the Commission invited applications for the post of Deputy Accountant (BS-16). The respondents were selected and recommended for the said posts. Upon recommendations of the Commission, the Chief Inspector of Treasuries & Accounts, Government of the Punjab issued offer/appointment letters to the respondents. In the said letter the appellant made offer to the respondents regarding the post for temporary appointment with the initial period of probation of two years, which posts are likely to be permanent later on. As per Clause III & IV of the appointment/offer letter, the appointing authority has jurisdiction to terminate its newly appointed employee/ respondents without assigning any reason or serving any show cause notice during the period of probation. For ready reference, appointment letter of one of the respondents is reproduced as under:

“To

CHAND IQBAL D/o MUHAMMAD IQBAL
House No. 245, Street No.7, Mohallah Khokhar Town,
Lahore.

Subject: **OFFER OF APPOINTMENT AGAINST A POST
OF DEPUTY ACCOUNTANT (BS-16) IN
PUNJAB TREASURIES AND ACCOUNTS
SERVICE (CATEGORY-WOMEN QUOTA)**

On the recommendations of the Punjab Public Service Commission, you are, hereby, offered a temporary appointment against a post of Deputy Accountant in BS-16, in the Treasuries/District Accounts Offices on the following terms and conditions:-

- i. Your appointment to the service will be on a temporary basis likely to be permanent, regulated by the Punjab Treasuries & Accounts Service Rules, 2006 (as amended up-to-date) subject to such other rules and orders issued by the Government of the Punjab from time to time for the category of civil servant to which you will belong.
- ii. The appointment is subject to verification and confirmation of your academic record and testimonials (at your own expenses) from the concerned board/university, which you will have to submit within 30 days after joining. If any of your

- document(s) are subsequently found to be fake or tempered with or contain any defect or shortcoming, your appointment shall stand cancelled ab-initio and you shall be liable to refund all amount received from the government in addition to such other action as may be taken against you.
- iii. You will remain on probation for two years, extendable for another two year if not terminated by the Competent Authority. However, on successful completion of period of probation, your service will be considered for confirmation.
 - iv. Your services are liable to termination without assigning any reason or serving any notice during the period of probation.
 - v. You shall be liable to serve anywhere in the Punjab during service.
 - vi. In case you wish to resign at any time from service, one month's notice shall be necessary or in lieu thereof one month's pay shall be deposited by you in cash into Government Treasury.
 - vii. You will have to join at the place for duty at your own expenses and no TA/DA shall be paid for any journey in this connection.
2. If you are willing to accept this appointment on the above terms and conditionals, you should report in the District Accounts Office, Gujranwala within fourteen (14) days from the date of issuance of this communication, failing which this offer shall stand cancelled.

(ISSUED BY THE ORDERS OF)
CHIEF INSPECTOR OF TREASURIES
& ACCOUNTS
(APPOINTING AUTHORITY)"

(emphasis supplied)

During investigation, one of the candidates, Gulzar Khan, admitted before the Anti-Corruption Establishment that he passed the written examination of Deputy Accountant (BS-16) through Roll No.22018 after paying Rs.250,000/- to one Usman and he also deposed that said Usman had sold these papers to many other candidates including his real brother Arshad Ahmad [Roll No.20733] who has also passed the examination and is working in District Accounts Office, Jhang. The Anti-Corruption Establishment conducted a thorough investigation and found that the question paper for the post of Deputy Account was leaked and

submitted report to the Commission. An FIR No.1/2021 dated 02.01.2021 of the said occurrence was registered under Section 161/162/164/165/166/409 PPC read with Section 5/2/47 of PCA at Police Station Anti-Corruption Establishment, Lahore. On this information/inquiry, the Director General, Anti-Corruption Establishment, Punjab requested the Chief Secretary, Punjab for cancellation of examinations. For ready reference, relevant portion of note dated 23.01.2021 is reproduced as under:

“5. On the basis of role of different culprits, evidence gathered during investigation so far and perusal of WhatsApp groups chat history of the culprits candidates for the posts, it is recommended that the examinations conducted by the PPSC against the posts mentioned in Annex-B, where candidates have not joined their duties, may be cancelled. It is also recommended that a reference may be sent to the Finance Department for the post of Deputy Accountant BS-16 for taking necessary action as the recruitment process has been completed and candidates have joined their duties.”

The Chief Secretary, Punjab approved the recommendations of the Anti-Corruption Establishment and forwarded the matter to the Commission. The Full Board of the Commission examined the said report and by invoking its power under Regulation 63 of the Punjab Public Service Commission Regulations-2016, issued Press Release dated 28.01.2021.

The Press Release dated 28.01.2021 issued the Commission is also reproduced as under:

“PUNJAB PUBLIC SERVICE COMMISSION, LAHORE

PRESS RELEASE

The Punjab Public Service Commission (PPSC), taking cognizance of the leakage of question papers as highlighted by the Anticorruption Establishment (ACE), after due deliberations, for maintaining transparency, and meritocracy has put on hold the recruitment/appointment process of the following posts:

- I. Deputy Accountant (BS-16) Finance Department
- II. Lecturer Education (BS-17), Higher Education Department
- III. Lecturer Physical Education (BS-17), Higher Education Department

- IV. Lecturer Physics (BS-17), Higher Education Department
- V. Lecturer Chemistry (BS-17), Higher Education Department
- VI. Lecturer Economics (BS-17), Higher Education Department
- VII. Lecturer History (BS-17), Higher Education Department
- VIII. Lecturer Biology (BS-17), Higher Education Department
- IX. Assistant Director (Investigation) (BS-17), Anticorruption Establishment Punjab.
- X. Inspector (BS-16), Anticorruption Establishment Punjab.
- XI. Assistant (BS-16), Punjab Police Department.
- XII. Zilladar (BS-14), Punjab Irrigation Department.

2. The matter shall be reviewed by the Punjab Public Service Commission as per its mandate, given in Regulation No.63 of PPSC's Regulations-2016. Further action after revision/rectification shall be taken in due course.

3. PPSC reiterates its resolve to protect and uphold the dignity of this 84 years old pioneer entity which has been serving the Punjab Province through a fair, merit based and transparent process to promote excellence, professionalism and competence.

(Muhammad Nawaz Khaild Arbi)
Secretary

No.PPSC/Exam/2021/12”

(emphasis supplied)

The meeting of Full Commission was held on 28.01.2021 and the matter was placed before Full Commission which vide letter dated 07.04.2021 addressed to the Additional Chief Secretary, Punjab and Finance Secretary, Government of the Punjab, declared that for fair play and transparency, the recommendation for the appointment of respondents are withdrawn. For ready reference, letter dated 07.04.2021 issued by the Commission is reproduced as under:

“To,

- 1. The Additional Chief Secretary,
Government of the Punjab,
S&GAD, Lahore.
- 2. The Finance Secretary,

Government of Punjab,
Lahore.

Subject: WITHHOLDING THE PROCESS OF
RECRUITMENT/ APPOINTMENT

Kindly refer to the subject cited above and also this Commission's letters No.Estt-I/2019-PPSC/112 & No.Estt-I/2019-PPSC/113, dated 28-01-2021.

2. It is stated that a meeting was held at 9-Aikman, GOR-I on 25-01-2021 at 03:30 pm under the convenership of Chief Secretary Punjab, which was attended by the followings:-

- Chief Secretary, Punjab
- Additional Chief Secretary, Punjab
- Chairman PPSC
- Secretary I&C, S&GAD
- Secretary Regulations, S&GAD
- Secretary, Law & Parliamentary Affairs Department
- Secretary, PPSC
- D.G Anti-Corruption Establishment (ACE) Punjab

3. During the meeting, the Director General Anti-Corruption Establishment submitted that they had apprehended four persons (02 from PPSC and 02 private persons) and found, after investigation that they were involved in leakage of papers, the exam for which had been conduct by the PPSC for the following posts:-

- i. Deputy Accountant (BS-16), Finance Department
- ii. Lecturer Education (BS-17), Higher Education Department
- iii. Lecturer Physical Education (BS-17), Higher Education Department
- iv. Lecturer Physics (BS-17), Higher Education Department
- v. Lecturer Chemistry (BS-17), Higher Education Department
- vi. Lecturer Economics (BS-17), Higher Education Department
- vii. Lecturer History (BS-17), Higher Education Department
- viii. Lecturer Biology (BS-17), Higher Education Department
- ix. Assistant Director (Investigation) (BS-17) Anti-Corruption Estt. (ACE)
- x. Inspector (BS-16), Anti-Corruption Establishment (ACE) Punjab
- xi. Assistant (BS-16), Punjab Police Department
- xii. Zilladar (BS-14), Punjab Irrigation Department

All participants unanimously condemned leakage of papers, and took a resolve to restore fair play, meritocracy and transparency, the earlier hall mark of PPSC, and put in all

possible measures to thwart recurrence of such an incident in future. During the meeting, the Secretary Regulations, S&GAD, opined referring, inter alia, to regulations No.63 of PPSC's Regulations-2016 that 'If any error or omission is detected in the eligibility of a candidate or result or merit list at any stage even after its dispatch to the department concerned, the recommendation(s) made on the basis of such a mistake/error shall be withdrawn for review by the Commission and duly rectified.

4. Subsequent to the meeting, an investigation report, in form of a 'Note', initiated by the DG ACE for Chief Secretary was marked down to the Chairman PPSC after passing through the hand of Additional Chief Secretary, Secretary IBC, Secretary Regulations (S&GAD) and Secretary Law & Parliamentary Affairs Department, giving complete detail of the investigation by ACE with its proposal.

5. On receipt of the ACE's report, a meeting of the Full Commission was convened by the Chairman PPSC on 28-01-2021, at 10:00 am, to examine and discuss the situation arising out of leakage of papers, and decide unanimously, the future course of action. After thorough discussion and debate on how to go ahead with the leaked papers, the following decisions were taken:

(A) The interview/recruitment process against the following posts be put on hold and matter be reviewed in line with the Regulation No.63 of PPSC's Regulations-2016:

- i. Lecturer Education (BS-17), Higher Education Department
- ii. Lecturer Physical Education (BS-17), Higher Education Department
- iii. Lecturer Physics (BS-17), Higher Education Department
- iv. Lecturer Chemistry (BS-17), Higher Education Department
- v. Lecturer Economics (BS-17), Higher Education Department
- vi. Lecture History (BS-17), Higher Education Department
- vii. Lecturer Biology (BS-17), Higher Education Department
- viii. Assistant (BS-16), Punjab Police Department
- ix. Ziladar (BS-14), Punjab Irrigation Department

(B). The Secretary Irrigation and D.G. ACE be requested to put the appointment process for the following posts on hold as the PPSC is initiating a process of reviewing the recruitment on report of D.G ACE:

- i. Zilladar (BS-14)
- ii. Assistant Director (BS-17)
- iii. Inspector (BS-16)

(C). A letter be written to Secretary Finance requesting him to hold in abeyance the appointment process of the Deputy Accountant (BS-16) whose requisition was sent vide letter dated 09-09-2020 because the PPSC wanted to review its recommendations in pursuance of the

recommendations of the ACE while exercising its power under Regulation No.63 of Regulations-2016.

6. In pursuance of the above decisions, letters, dated 28-01-2021, were written accordingly to the Additional Chief Secretary and Finance Secretary; whereas, a Press Release, for general Information of the candidates/public was also issued.

7. The Punjab Public Service Commission had since been waiting for receipt of any more information from ACE to address the matter holistically in one go; however, no subsequent report/material was received from the ACE except a report about incrimination of 04 employees of PPSC.

8. The final meeting of the Full Commission of PPSC was held on 17-03-2021 at 11:30 am, for review of the decision taken on 28-01-2021 about putting on hold the recruitment/appointment process against above said 12 papers/posts, After detailed discussion on the report submitted by the Anti-Corruption Establishment Punjab, in form of a 'Note for Chief Secretary along with annexure, the Full Commission observed that the Anti-Corruption Establishment and the corroborating circumstances, endorsed by the internal probe at PPSC level, established the leakage of papers against 12 posts, and keeping these papers intact would tantamount to compromising the fair play, meritocracy and transparency of the Punjab Public Service Commission, therefore, giving due consideration to Regulation No.63 of PPSC's Regulations-2016, the Full Commission of PPSC unanimously decided as under:-

(a) withdraw, for all intents and purposes the papers/tests/selection processes, completed/under going, against the following posts:-

- i. Deputy Accountant (BS-16), Finance Department
 - ii. Lecturer Education (BS-17), Higher Education Department
 - iii. Lecturer Physical Education (BS-17), Higher Education Department
 - iv. Lecturer Physics (BS-17), Higher Education Department
 - v. Lecturer Chemistry (BS-17), Higher Education Department
 - vi. Lecturer Economics (BS-17), Higher Education Department
 - vii. Lecture History (BS-17), Higher Education Department
 - viii. Lecturer Biology (BS-17), Higher Education Department
 - ix. Assistant Director (Investigation) (BS-17), Anticorruption Establishment Punjab
 - x. Inspector (BS-16), Anticorruption Establishment Punjab
 - xi. Assistant (BS-16), Punjab Police Department
 - xii. Zilladar (BS-14), Punjab Irrigation Department
- (emphasis supplied)

(b). The tests/papers against the above posts shall be conducted afresh in due course of time, of the existing candidates only.

(c). No fresh advertisement shall be given for recruitment against these posts, and the existing candidates against these posts shall not be required to either again remit admission fee or submit online admission forms.

9. In view of the foregoing, the decision of the Full Commission of Punjab Public Service Commission, taken on 17-03-2021, is conveyed accordingly.

(MUHAMMAD NAWAZ KHALID ARBI)
SECRETARY”

(emphasis supplied)

5. Even otherwise, Section 10 (1)(i) of the Punjab Civil Servants Act, 1974 empowers to the government to terminate the services of an employee during probation period even without serving any notice. For ready reference, aforesaid provision is reproduced as under:

“10. Termination of service

(1) The service of a civil servant may be terminated without notice-

(i) During the initial or extended period of his probation:

Provided that, where such civil servant is appointed by promotion on probation or, as the case may be, is transferred and promoted on probation from one service cadre or post to another service, cadre or post his service shall not be terminated so long as he holds a lien against his former post, service or cadre, and he shall be reverted to his former service, or as the case may be, cadre or post;”

(emphasis supplied)

As per the provision reproduced above, the termination order of the respondents was issued without any stigma. For ready reference, termination order dated 09.04.2021 of one of the respondents is reproduced as under:

“ORDER IT(FD)(ESTT-II)10-1/2020(New Recruitments) in pursuance to the letter of Punjab Public Service Commission bearing No Estt-I/2019-PPSC/405, dated 07-04-2021, wherein PPSC has withdrawn for all intents and purposes, the paper

/test/selection process, completed against the post of Deputy Accountant (BS-16), Finance Department, the services of Chand Iqbal D/O Muhammad Iqbal, recruited as Deputy Accountant (BS-16) vide this Inspectorate orders bearing No. IT-FD(Estt-II)10-1/2020(PF-183) dated 01-12-2020 are, hereby, terminated with immediate effect.

2. Punjab Public Service Commission has further conveyed that the test/paper against the said post shall be conducted afresh in due course of time of the existing candidates only and no fresh advertisement shall be given for recruitment against this post and the existing candidates shall not be required to either again remit admission fee or submit on-line admission form.

CHIEF INSPECTOR OF TREASURIES
& ACCOUNTS, PUNJAB”

6. The appellants have failed to bring on record any grudge or malice against the respondents nor proved the same. The services of the appellants/probationers could be terminated without notice during initial or extended period of probation. Where no stigma of misconduct including inefficiency or corruption was attached, same would be a case of termination simpliciter thus, question of any prior show cause notice would not arise.¹

7. Further, in the impugned judgment, the learned Single Judge in Chamber himself held that principle of locus poenitentiae is applicable and the Commission has jurisdiction under Regulation 26 and 63 of the Regulations-2016 to withdraw the recommendations as the Commission does not become functus officio. For ready reference, the relevant portion of impugned judgment is reproduced as under:

“11..... However, in this Court’s opinion, PPSC does not become functus officio, in its stricto sensu, after sending the recommendations for appointment, because Regulations 26 and 63 allow withdrawal of recommendations. Both the regulations are neither read down nor held ultra vires in any of

¹ Muhammad Siddiq Javaid Chaudhry Vs. The Government of West Pakistan (PLD 1974 SC 393), Ch. Muhammad Hussain Naqshbandi Vs. Government of the Punjab and others (2004 SCMR 44) and Syed Tathir Hussain Shirazi Vs. The Governor of the Punjab and others (1990 SCMR 1510)

the judgments noted above. Nevertheless, after decisive step of appointment on the recommendations a right is created. Even the right, so created, is not absolute. Principle of locus poenitentiae is found embedded in Section 21 of the General Clauses Act, 1897, which authorizes an authority to amend, add, vary or rescind its order, notification etc. Locus poenitentiae means; “an opportunity to withdraw from a contract or obligation before it is completed” [Merriam Webster Dictionary]. The decisive step, in view of locus poenitentiae principle, would not allow to retain the benefit, if the order, notification or recommendation, so passed, was illegal, void or without lawful authority, as is held in judgment Higher Education, Punjab Civil Secretariat Lahore and others v Muhammad Imran and others (2019 SCMR 643). Relevant portion is reproduced:-

“10. Keeping in view the above deliberation, it is noted that there is a judicial consensus on the issues in hand in terms that;

I) The Authority which can pass order is entitled to vary, amend, add to or to rescind the same under section 21 of the General Clauses Act, 1897.

II) The jurisdiction to recall an earlier order is based on the principle of locus poenitentiae.

III) There is an exception to the principle of locus poenitentiae vesting power in an authority to recall its earlier order: if in pursuance of the order passed by the authority, an aggrieved person takes decisive steps, and changes his position.

IV) None can retain the benefits of a withdrawn order, claiming the protection of having taken a decisive step, when the very order passed by the authority is illegal, void or without lawful authority. In such circumstances, it would not matter, even if decisive steps have been taken by the person in pursuance of the illegal order passed by the authority. However, the pecuniary benefit accrued and already received by a person in pursuance of an illegal order passed by the competent authority cannot be recovered from him unless the benefiting order was obtained by the person through fraud, misrepresentation or concealment of material facts.”

The Hon'ble Supreme Court of Pakistan in Province of Punjab's case² has held as under:

“11.This Court has in a large number of judgments clearly and categorically held that locus poenitentiae is the power of receding till a decisive step is taken but is not a principle of law that an order once passed becomes irrevocable and it is a past and closed transaction. If an order is illegal then a

² Province of Punjab through Secretary, Finance Department, Civil Secretariat, Lahore and others Vs. Atta Muhammad Zafar and others (2021 SCMR 1195)

perpetual right cannot be created on the basis of such illegal order. In this regard, reference may usefully be made to the case of Engineer-in-Chief Branch v. Jalaluddin (PLD 1992 SC 207). ”

8. As per the Regulation 26 and 63 of Regulations-2016, the Commission is also competent to withdraw its earlier recommendations sent to the concerned department if a person has been found deficient in any conditionality regarding his / her eligibility as a candidate and if any error or omission in result or merit is found, even after dispatch of recommendation to the concerned department. For ready reference, Regulation 63 of the Regulations-2016 is reproduced as under:

“63. If any error or omission is detected in the eligibility of a candidate or result or merit list at any stage even after its dispatch to the Department concerned, the recommendation(s) made on the basis of such a mistake/error shall be withdrawn for review by the Commission and duly rectified.”

Thus, the above provision confers jurisdiction to the Commission to withdraw the recommendation made for appointment against any post proposed for appointment through the Commission.

9. Another aspect of the matter is that in the writ petition the respondents only challenged the termination letters whereas the withdrawal of the recommendations by the Commission in term of Regulation 26 read with Regulation 63 of Regulations-2016 were not challenged by the respondents. The respondents also did not challenge the decision of Commission dated 28.01.2021 and decision dated 07.04.2021 of Full Commission but learned Single Judge in Chamber in a *suo moto* action [in paragraph No.9 of the impugned judgment] also set aside the said decisions whereas it is well-settled law that High Court is debarred to take *suo moto* action due to want of jurisdiction in this regard. The Hon'ble Supreme Court of Pakistan in plethora³ of judgments has reiterated this view. The Hon'ble Apex Court recently in Federal

³ Abrar Hassan Vs. Government of Pakistan and another (PLD 1976 SC 315), Mian Muhammad Nawaz Sharif and others Vs. Muhammad Habib Wahab Al-Khairi and others (2000 SCMR 1046), Abdullah Jumani and others Vs. Province of Sindh and others (2024 SCMR 1258).

Government Employees Housing Authority's case⁴ has held as under:

“12. This Court has consistently ruled that the High Courts do not have suo motu jurisdiction and as such the constitutional scheme never intended to confer such powers on the High Courts. This Court in the Abdullah Jumani judgment, authored by one of us (Muhammad Ali Mazhar, J.), has held that the High Court cannot assume suo motu jurisdiction by overreaching or overstretching its constitutional limits. It is constitutionally impermissible for the courts to expand and enlarge their jurisdictional domain, which is neither allowed by the Constitution nor by the law. In the Taufiq Asif case, this Court has held that the High Court cannot grant a relief, which is not even sought in the petition. As per the Akhtar Abbas case, ‘it is settled law that in writ proceedings, the relief must be confined to the prayer made in the writ petition and the High Court cannot issue a writ suo motu’. Hence, in view of the dictum laid down by this Court, the High Court cannot on its motion declare the policy as unconstitutional and illegal.”

(emphasis supplied)

This Court has discussed in detail this issue in a recent reported judgment dated 15.01.2025 passed in Federation of Pakistan Vs. Ashba Kamran's case⁵ (DB) holding that High Court has no suo moto jurisdiction to take cognizance of the matter.

10. It has been established on record that the question papers for the examination of Deputy Accountant (BS-16) and others were leaked and a person who got appointment on a public post on the basis of fraud/cheating would severely damages the department by undermining merit and fairness, reducing efficiency due to lack of competence, causing financial losses and exposing the department to legal and reputational risks. Further, such appointments also erode morale and public trust in the Institution. The Hon'ble Supreme Court of Pakistan on the application of a citizen regarding alleged large scale illegalities committed by the Sindh Public Service Commission in the appointment of civil

⁴ Federal Government Employees Housing Authority through Director General, Islamabad Vs. Ednan Syed and others (PLD 2025 SC 11)

⁵ I.C.A. No.53628/2024 titled as Federation of Pakistan through Secretary, Ministry of Interior, Government of Pakistan Vs. Ashba Kamran etc.

servants took suo moto notice⁶ and held that Public Service Commission and Government were obliged to ensure complete transparency in the process of selection / appointment of civil servants and if an incompetent or the corrupt persons enter into the civil service at the unwarranted ouster of the eligible and competent candidate from public post / job opportunities such appointments which disregard the merit, undoubtedly perpetuate bad governance and would drained the public exchequer and such appointments also thwart the credibility of the Commission. In the said case, the Hon'ble Supreme Court of Pakistan has observed that large scale illegalities and discrepancies committed by the Sindh Public Service Commission in conducting written tests and interviews for advertised posts, and issued the following directions:

“26. ... Therefore, balancing the lawful and genuine concerns of all concerned, safeguarding the legitimate concerns of the successful candidates, ensuring the credibility of the Commission and the integrity of the selection process we dispose of this matter by issuing the following directions:

- (1) A person of integrity and competence who meets the stipulated qualification for appointment as Chairman of the Commission be appointed in terms of Article 242 (1B) of the Constitution within two weeks from the date of the announcement of this judgment;
- (2) It should be ensured that all Members of the Commission meet the prescribed qualifications;
- (3) Persons of integrity and competence possessing the prescribed qualifications should be appointed to the vacant positions of Members of the Commission within four weeks of the announcement of this judgment;
- (4) In view of the large scale illegalities / discrepancies committed in the written tests and interviews of CCE-2013 the same are set aside and cancelled. It is, however, clarified that the screening tests results are not cancelled/set aside;
- (5) Fresh written tests for CCE-2013 for the posts as advertised be held as soon as possible after the appointment of the Chairman and Members of the

⁶ Suo Motu Action Regarding Eligibility of Chairman and Members of Sindh Public Service Commission etc. (2017 SCMR 637)

Commission and after the verification of the credentials of the existing / remaining Members;

- (6) Only the 2,813 candidates who had earlier taken the written tests of CCE-2013 for the 182 posts be permitted to take the fresh written tests even if in the meanwhile they have crossed the stipulated upper age, and without requiring payment of any additional fee / charge;
- (7) When the papers of the written tests are sent for checking/marking the identity of the candidates must be kept anonymous/secret;
- (8) The marks of the written tests should be publicly displayed on the Commission's website, on the notice board in its premises and in one Urdu, English and Sindhi newspaper; disclosure should be made of the marks obtained in each subject as well as the cumulative total against the candidates' roll numbers;
- (9) All those who obtain the prescribed minimum pass marks in the written tests must be invited for the interview;
- (10) The marks allocated for the interview must be allocated to the interviewers equally, however, to avoid a fraction the Chairman, or in his/her absence, the senior most Member shall have the higher mark rounded off to avoid a fraction;
- (11) The Commission shall keep a separate record of the marks awarded by each interviewer and each interviewer should sign and date the same as well as the combined results;
- (12) The results of the interview should be displayed in the same manner as mentioned above in point (8) with respect to written tests;
- (13) The written tests, their checking/marking, interviews and display of results be completed as soon as is practicable since the matter pertains to CCE-2013;
- (14) Candidates should be selected for all the advertised posts, unless they don't pass the written tests and the interview; and
- (15) The candidates who are selected by the Commission should be offered appointment by the Government as per applicable law, and if any candidate declines the candidate who is next on the merit list be offered the same.
- (16) That in the future the Government should provide a list of existing vacancies, which should include a list of posts that may become vacant in the foreseeable future and a list of new posts to the Commission every year

and by a specified date. Upon receipt of such lists the Commission should start making arrangements for holding of competitive examinations; for the current year 2017 the said lists should be provided by the Government to the Commission within sixty days, upon receipt whereof the Commission should invite applications from interested individuals by placing advertisements, which should also clearly stipulate the legally mandated reserved seats, including those for women and persons having physical disabilities. It is clarified that the direction contained in this paragraph is not applicable to the examinations for CCE-2013 in respect whereof separate directions hereinabove have been issued.”

A review petition was filed in the judgment (supra) which was also dismissed by the Hon'ble Supreme Court of Pakistan⁷ with the following observation:

“4...

(iii) The learned counsel for the review petitioners have emphasized that the illegalities described in the said paragraph are not of a nature that would warrant discarding the entire process. After careful examination of the illegalities pointed out in the paragraph in question, we are convinced that the cumulative effect of the illegalities noticed by the Court paint a very grim and disturbing picture of systematic and well thought out acts and omissions on the part of the Chairman and Members of the Commission to reward a few and deprive many without there being any objective and fair criteria and transparent process in place which could withstand the process of judicial scrutiny and accountability.

(iv) The question before this Court is not whether one or the other set of candidates had resorted to unfair means and illegal acts in order to gain employment, the real question relates to fairness, integrity and transparency of the process and procedure adopted by the Chairman and Members of the Commission to undertake the selection process. This Court has found serious flaws in the process of selection which point towards lack of transparency to facilitate nepotism and favoritism that cannot be condoned or countenanced.”

(emphasis supplied)

The Government of Khyber Pakhtunkhwa on the complaints regarding mass cheating, the Medical & Dental Colleges

⁷ *Rashid Ali Channa and others Vs. Muhammad Junaid Farooqui and others* (2017 SCMR 1519)

Admissions Test (i.e. MDCAT) conducted an inquiry and cancelled the said test which decision was challenged through many Constitutional Petitions before the Peshawar High Court, Peshawar who dismissed the same vide judgment dated 03.10.2023 passed in W.P.No.4015-P/2013. The said judgment was upheld by the Hon'ble Supreme Court of Pakistan in Hafsa Habib Qureshi's case⁸, the relevant portion whereof is reproduced as under:

“15. It is a matter of record that the present incident of cheating through the use of modern devices during MDCAT 2023 has widely been reported through electronic and social media and raised serious concerns about the fairness of the MDCAT. Such unethical practices not only compromise the integrity of the examination process but also pose a significant threat to the quality of healthcare professionals being produced. In response to this challenge, the provincial government has rightfully taken the decision to retake the exams. The decision to conduct a re-examination is a commendable step towards upholding the standards and values of the medical profession. Those who resort to dishonest means to secure a place in medical colleges not only violate the principles of fairness but also jeopardize the trust that society places in healthcare providers.

The retake of the MDCAT is a necessary measure to rectify the damage caused by the cheating scandal and to ensure that only qualified and deserving candidates enter the medical profession. It is understandable that some candidates who performed legitimately in the MDCAT 2023 may feel aggrieved by the decision to retake the tests. However, it is important to emphasize that the greater good lies in maintaining the integrity of the medical profession. Competent and deserving candidates should view the retake of the MDCAT as an opportunity to reaffirm their capabilities. If they are truly competent, they should have confidence in their abilities to succeed once again, and the retake of the test should be seen as a fair and transparent means to identify the most qualified individuals for the medical profession. No doubt, the above issue was properly addressed by the Peshawar High Court, after referring to case law from both domestic and Indian jurisdictions and rightly upheld the Provincial Government's decision to retake the MDCAT.”

11. In Ali Sher Khan's case⁹ it was declared that the recruitment process in absence of any transparency i.e. written

⁸ Hafsa Habib Qureshi and others Vs. Amir Hamza and others (PLD 2024 SC 780)

⁹ Ali Sher Khan Vs. District and Sessions Judge, Multan and others [2022 PLC (C.S.) 492]

test was conducted and result was declared on the same day without showing fairness or transparency from record and the whole process of recruitment was declared as illegal.

12. As regard the argument of learned counsel for the respondents that instead of terminating the services of all the successful candidates, only those candidates who passed exam through unfair means (leak papers) can be segregated and their matter may be resolved by terminating their services but the termination of the services of all the candidates as well as entire examination is harsh. These arguments might have some weight but using of unfair means in the examination undoubtedly shattered the confidence of public in the examination system and on the other hand, if we allow the piecemeal cancellation of examination process it will encourage the racket who were involved in the said nefarious scam of cheating but remained unnoticed in the process either by maneuvering with the invigilators of the examination or otherwise. This question has been resolved by the learned Singh High Court in *Mst. Saba's* case¹⁰ by holding as under:

“16.... The aforesaid incidences of leakage of papers and decision of retest make evident that a large number of students had to sit in retake/retest. In India two million students had to sit in retest of two papers. The Supreme Court of India dismissed the petitions which were filed to challenge the decision of retake/retest. In our country the Cambridge students had to sit in retest of two subjects like other examples of Lahore High Court orders for retest in the medical entry test and retest/retake announced by Institute of Business Management. The right which is foundation of an application under Article 199 of the Constitution is a personal. The legal right may be a statutory right or a right recognized by law. A person can be said to be aggrieved only when a person is denied a legal right by someone who has a legal duty to perform relating to the right. There must not only be a right but a justiciable right in existence to give jurisdiction to this court in the matter. The object of the proceeding initiated under Article 199 of the Constitution of Islamic Republic of Pakistan is the enforcement of a right and not the establishment of legal

¹⁰ *Mst. Saba Vs. The Province of Sindh through Secretary and 2 others* [2020 PLC (C.S.) 113]

right and therefore, the right of petitioner must not only be clear and complete but simplicitor and there must be an actual infringement of the right.”

Another reliance is placed on *Rida Fatima's* case¹¹. Thus, it will be in the fitness of things and fair play that instead of cancelling the candidature of few candidates, the entire recruitment process may be set aside. The respondents/candidates who are opposing this withdrawal of recommendations had no vested right in the examination conducted by the respondents and the Commission has jurisdiction under the principle of the locus poenitentiae as well as Section 21 of the General Clauses Act, 1897 to make decision to conduct said test again and the said re-test will cause no prejudice to those candidates because if they have confidence in their abilities and intellect, then obviously in the next examination they would again be with better position. However, if the said examination is not re-conducted, those candidates who were indeed involved in unfair means would be in advantageous position as compared to those students who have worked hard and burnt midnight oil while preparing for the examination. Therefore, the decision of the Commission and the department on this score is not open to any exception. Further, the Commission withdrew recommendations of the candidates in 12 different departments out of which new tests have been taken in 09 departments and the matter is pending for 03 departments only due to the pending litigation.

13. As regard the objection of learned counsel for the respondents that the respondents were terminated by the appellants due to alleged leakage of the paper but the Commission did not take any action against its employees who were involved in this offence, suffice it to say that the learned Law Officer has apprised this Court that the Commission conducted inquiry against its officers/officials who were involved

¹¹ *Rida Fatima Vs. Pakistan medical Commission and others* (PLD 2022 Lahore 197)

in this matter and in the light of findings of the Inquiry Report imposed major penalties of dismissal as well as removal from service under the Punjab Employees Efficiency, Discipline and Accountability Act 2006 on the said officials who were found involved in the offence. In support of his submission, learned Law Officer has placed on record orders dated 07.11.2023 passed by the Commission against Furqan Ahmad, Assistant Director Research (BS-17) [dismissed from service], Khurshid Alam, Superintendent (BS-17) [removed from service], Muhammad Shahzad, Senior Scale Stenographer (BS-16) [removed from service] and Waqar Akram, Junior Computer Operator (BS-12) [dismissed from service]. Thus, the argument of learned counsel for the respondents, being devoid of any force, is hereby repelled.

14. Resultantly, this as well as connected Intra Court Appeals [mentioned at Sr. No.1 to 9 of the Appendix] are **allowed**, the judgment dated 14.07.2021 passed by the learned Single Judge in Chamber is hereby set aside and the Writ Petitions filed by the respondents, including the Writ Petitions mentioned at Sr. No.10 to 13 of Appendix, are hereby **dismissed**.

(Malik Waqar Haider Awan)
Judge

(Ch. Muhammad Iqbal)
Judge

Announced in open Court on 16.06.2025.

Approved for reporting.

Judge

Judge

Appendix		
Sr. No.	Case No.	Title
1.	I.C.A. No. 13339/2022	Province of Punjab etc. Vs. Rida Hussain etc.
2.	I.C.A. No.13341/2022	Province of Punjab etc. Vs. Mst. Rabia Shad etc.
3.	I.C.A. No.13343/2022	Province of Punjab etc. Vs. Danyal Hafeez etc.
4.	I.C.A. No.13345/2022	Province of Punjab etc. Vs. Nayab Hussain etc.
5.	I.C.A. No.13346/2022	Province of Punjab etc. Vs. Maria Nadeem
6.	I.C.A. No.13347/2022	Province of Punjab etc. Vs. Asid Haider
7.	I.C.A. No.13348/2022	Province of Punjab etc. Vs. Sidra Sadaf
8.	I.C.A. No.13350/2022	Province of Punjab etc. Vs. Muhammad Usman Azeem
9.	I.C.A. No.13352/2022	Province of Punjab etc. Vs. Muqaddas Siddique
10.	W.P.No.28399/2021	Jahanzaib Vs. Province of Punjab etc.
11.	W.P.No.28711/2021	Muhammad Amir Vs. Government of the Punjab etc.
12.	W.P.No.29811/2021	Muhammad Umair etc. Vs. Punjab Public Service Commission etc.
13.	W.P.No.16781/2025	Arshad Ahmad Vs. Province of Punjab etc.

(Malik Waqar Haider Awan)
Judge

(Ch. Muhammad Iqbal)
Judge